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Separate paging is given to this Part in order that it may be filed as a separate compilation.

PART IV.

Acts of the Indian Legislature assented to by the Governor General.

GOVERNMENT OF INDIA.

LEGISLATIVE DEPARTMENT.

The following Act of the Indian Legislature received the assent of the Governor General on the 17th March 1939, and is hereby promulgated for general information :—

ACT No. VIII OF 1939.

An Act to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law and to remove doubts as to the effect of the renunciation of Islam by a married Muslim woman on her marriage tie.

WHEREAS it is expedient to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law and to remove doubts as to the effect of the renunciation of Islam by a married Muslim woman on her marriage tie ; It is hereby enacted as follows :—

1. (1) This Act may be called the Dissolution of Muslim Marriages Act, 1939. Short title and extent.

(2) It extends to the whole of British India.

2. A woman married under Muslim law shall be entitled to obtain a decree for the dissolution of her marriage on any one or more of the following grounds, namely :— Grounds for dissolution of marriage.

- (i) that the whereabouts of the husband have not been known for a period of four years ;
- (ii) that the husband has neglected or has failed to provide for her maintenance for a period of two years ;
- (iii) that the husband has been sentenced to imprisonment for a period of seven years or upwards ;